

Court No. - 32

Case :- WRIT - C No. - 17652 of 2022

Petitioner :- Mohd. Ariz Shamsi And Another

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Krishna Agarawal

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vikram D. Chauhan,J.

Sri Krishna Agrawal, learned Advocate has received notice on behalf of respondent no.1.

Learned counsel for the petitioner prays for and is granted adjournment for the day to enable him to serve the notice of the writ petition upon the counsel appearing for the respondent nos.2 and 3.

List on 25th July, 2022 as fresh.

Order Date :- 24.6.2022

Bhaskar

Court No. - 21

Case :- WRIT - C No. - 17652 of 2022

Petitioner :- Mohd. Ariz Shamsi And Another

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ram Manohar Narayan Mishra,J.

Matter does not pertain to the jurisdiction conferred to this Court under the present roster.

List as fresh on 20.9.2022, before appropriate Bench.

(R.M.N. Mishra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.8.2022

A.P. Pandey

Court No. - 29

Case :- WRIT - C No. - 17652 of 2022

Petitioner :- Mohd. Ariz Shamsi And Another

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Krishna Agarawal

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

Sri Mukesh Kumar Singh has appeared for the respondents 2 and 3. He states that his name is not shown in the cause list and therefore, the matter be taken up after two days.

In view of the above, put up, as fresh, on 29th September, 2022 showing the name of Sri Mukesh Kumar Singh from the respondent side.

Order Date :- 26.9.2022

Sunil Kr Tiwari

Court No. - 29

Case :- WRIT - C No. - 17652 of 2022

Petitioner :- Mohd. Ariz Shamsi And Another

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Krishna Agarawal, Mukesh Kumar Singh

Hon'ble Manoj Misra, J.

Hon'ble Umesh Chandra Sharma, J.

Sri Mukesh Kumar Singh, learned counsel for the respondents, states that the petitioners have not cleared electricity dues and now they are pressing for fresh connection just to avoid payment of past electricity dues.

Be that as it may, let all the above facts be brought on record through an affidavit for which 10 days time is allowed to the learned counsel for the respondents.

Put up, as fresh, on 14th November, 2022.

Order Date :- 19.10.2022

AKShukla/-

Court No. - 40

Case :- WRIT - C No. - 17652 of 2022

Petitioner :- Mohd. Ariz Shamsi And Another

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Krishna Agarawal, Mukesh Kumar Singh

Hon'ble Siddhartha Varma, J.

Hon'ble Umesh Chandra Sharma, J.

Sri Mukesh Kumar Singh, learned counsel appearing for the respondent-Electricity Department is present.

He prays for and is granted 10 days' time to file counter affidavit.

List this case on 10.01.2023 as fresh in top ten cases.

Order Date :- 20.12.2022

AKT

Court No. - 3

Case :- WRIT - C No. - 17652 of 2022

Petitioner :- Mohd. Ariz Shamsi And Another

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Krishna Agarawal, Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Sandeep Kumar, learned counsel for the petitioners and Sri Mukesh Kumar Singh, learned counsel for respondent nos. 2 and 3.

Despite order dated 20.12.2022, the respondents have chosen not to file counter affidavit.

This writ petition has been filed praying for a direction to respondent no. 3 to provide electricity connection to the petitioners in accordance with law within stipulated period.

Learned counsel for respondent nos. 2 and 3 states that if the petitioners submit applications completing all formalities within two weeks, then their applications for electricity connection shall be considered by respondent no.3 and appropriate action in accordance with law shall be taken.

In view of the aforesaid, with the consent of learned counsel for the parties and without expressing any opinion on merits of the case of the petitioners, this writ petition is disposed of giving liberty to the petitioner to submit application for electricity connection before the respondent no.3 within three weeks alongwith a certified copy of this order completing all formalities as may be required by the relevant Act/Rules of the U.P. Electricity Supply Code, 2005. In the event such applications are submitted by the petitioners before the respondent no.3 within the stipulated time, the respondent no.3 shall consider the applications of the petitioners and shall pass appropriate order in accordance with law within next three weeks.

The writ petition stands **disposed of**.

Order Date :- 10.1.2023

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